

of prevailing on appeal such that a new trial would be required. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial can be addressed by in motions in limine if appropriate and necessary. Further, a delay pending appeal will likely delay this case by possibly several years. Having considered all the arguments, the Court exercises its discretion and denies the request for a stay.

The clerk of the Court is directed to set the matter on the Case Management Conference (CMC) calendar for re-setting of the trial date and give notice of such date to all parties.

2. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

The hearing is continued to 9:00 a.m. on June 15, 2026, pursuant to the stipulation of the parties.

3. 9:00 AM CASE NUMBER: C23-01577
CASE NAME: APP FUNDING, LLC VS. GEORGE FRIE
***HEARING ON MOTION IN RE: ORDER TO AMEND DEFENDANTS' NAMES IN THE JUDGMENT**
FILED BY: APP FUNDING, LLC
TENTATIVE RULING:

Plaintiff and judgment creditor APP FUNDING, LLC ("Plaintiff") filed a Motion for Order to Amend Defendants' Names in the Judgment on October 30, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment was set for hearing on January 12, 2025.

Background

A sister-state Judgment was entered herein against the following defendants and judgment debtors (the "Defendants") on June 20, 2025 (the "Judgment"):

BE CLINICAL, INC. D/B/A BE CLINICAL
AEROHIVE NETWORKS, INC.
FIONA'S SWEETSHOPPE, CORP.
BE CLINICAL AESTHETICS AND WELLNESS, P.C.
BE CLINICAL HOLDINGS, INC.
FIGE, LLC
GEORGE W. FRIE

FIONA S. FRIE

The principal amount of the Judgment was \$219,865.28, with a total Judgment of \$232,203.12.

Plaintiff seeks to amend the names of the Defendants in the Judgment to add certain supplemental language (as indicated in bold face type below) pursuant to Code of Civil Procedure section 187:

BE CLINICAL, INC., D/B/A BE CLINICAL, **A CALIFORNIA CORPORATION**

AEROHIVE NETWORKS, INC., **A CALIFORNIA CORPORATION**

FIONA'S SWEETSHOPPE, CORP., **A CALIFORNIA CORPORATION**

BE CLINICAL AESTHETICS AND WELLNESS, P.C., **A CALIFORNIA CORPORATION**

BE CLINICAL HOLDINGS, INC., **A CALIFORNIA CORPORATION**

FIGE LLC, **A LIMITED LIABILITY COMPANY**

GEORGE W. FRIE, **INDIVIDUALLY**

FIONA S. FRIE, **INDIVIDUALLY**

Analysis

Code of Civil Procedure section 187 provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

Code Civ. Proc. § 187.

The authority granted to a court under Section 187 includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the additional judgment debtor liable on the judgment. *Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280 (“*Highland Springs*”). It also includes the authority to amend a judgment to “designate the real name of the judgment debtor.” *Thomson v. L. C. Roney & Co.* (1952) 112 Cal.App.2d 420, 425. The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence. *Highland Springs, supra*, 244 Cal.App.4th at 280.

Plaintiff’s request is not based on any asserted alter ego liability. This is simply a matter of amending the Judgment to state the true name or alias of the judgment debtors by adding reference to the type of legal entity or their capacities as individual persons. Declaration of Steven Booska filed October 30, 2025, ¶12.

It is not clear why Plaintiff did not proceed by way of an Affidavit of Identity pursuant to Code of Civil Procedure section 680.135 and the applicable levy/garnishment provisions of the Enforcement of Judgments Law (EJL). See Code Civ. Proc. § 699.510 (“The writ of execution shall include the additional name or names, and the type of legal entity, by which the judgment debtor is known, as set forth in the affidavit of identity, as defined in Section 680.135, filed by the judgment creditor with the application for issuance of the writ of execution.”); see also Code Civ. Proc. § 680.135.

In any event, the Court has the authority to amend the Judgment to add the alias under Section 187 and Code of Civil Procedure sections 473(a)(1) and 473(d). See Code Civ. Proc. § 473(a)(1) (“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party...”) and 473(d) (“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”).

The Court finds that amending the Judgment to add the additional language regarding the type of legal entity or individual capacities of the named Defendants is just and appropriate and will facilitate the enforcement of the Judgment, without changing its scope or effect.

The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**

FILED BY: LEONE, MISTY

TENTATIVE RULING:

This matter was continued by order of the Court at the Issue Conference held on January 8, 2025, as will be set forth in a forthcoming order of the Court.

5. 9:00 AM CASE NUMBER: C23-02039

CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

HEARING IN RE: JOINDER TO RICKY D. HORTON MSJ

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Kevin Horton’s Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Defendant’s joinder motion is **denied** as set forth below.